

Clause 4.5

Erection of poles / lines on private land

3 cases, chronological:

SCJ-120 Shivmahraj v. State of U.P. & 6 Others **2024**

SCJ-104 Priy Shankar Pandey v. State of U.P. & 4 Others **2024**

SCJ-169 Abhimanyu Singh v. State of U.P. & 7 Others **2026**

Shivmahraj v. State of U.P. & 6 Others

Allahabad High Court · Division Bench · 1 July 2024 · 2024:AHC:105830-DB · WRIT - C No. 16876 of 2024 · **Writ petition disposed of; petitioner directed to appear before District Magistrate with status quo pending decision**

HEADNOTE

Companion ruling to SCJ-104 (Priy Shankar Pandey v. State of U.P.), decided by an overlapping Bench roughly contemporaneously, on materially identical facts: a landowner's objection to a new electric pole/line being erected on his private property to supply village residents is to be resolved under Clause 3 of the Works of Licensees Rules, 2006 by the District Magistrate (or Commissioner of Police/authorised officer), balancing the landowner's Clause 4.5(d) Supply Code right to object against the public interest in the electrification work not being unduly stalled.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

Companion ruling to SCJ-104 — identical holding on a parallel landowner objection to a new power line/pole for village electrification

HOLDING

As in SCJ-104: the landowner has a right under Clause 4.5(d) of the Supply Code to object to a supply line/pole being erected over his land; that objection is to be resolved under Clause 3 of the Works of Licensees Rules, 2006 by the District Magistrate or other authorised officer, balancing the landowner's rights against the public interest in the electrification work. The petitioner was directed to appear before the District Magistrate (already scheduled to hear similar grievances) with all relevant material, to be heard and a decision passed after hearing all parties including the licensee respondents, with status quo maintained in the interim. ¶ [unnumbered order](#)

LIMITING FACTS

The petitioner objected to a new electric pole being erected on his private property and to a line from that pole supplying electricity to village residents, who in turn contended the petitioner was obstructing an urgently-needed public electrification work — materially identical facts to SCJ-104 (Priy Shankar Pandey), decided about nine months earlier by an overlapping Bench.

FLAG Near-identical companion order to SCJ-104; recorded compactly given the substantially duplicate reasoning and holding.

PRINCIPLE TAGS

clause-4.5d-landowner-objection-to-supply-line

Companion application of the same principle as SCJ-104 (Priy Shankar Pandey v. State of U.P.). ¶ [unnumbered order](#)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POLE/LINE PLACEMENT ON THE PETITIONER'S LAND SHOULD PROCEED OR BE RELOCATED

Not decided; left to the Clause 3, Works of Licensees Rules 2006 authority (District Magistrate) after hearing all parties.

¶ [unnumbered order](#)

Priy Shankar Pandey v. State of U.P. & 4 Others

Allahabad High Court · Division Bench · 21 October 2024 · 2024:AHC:167473-DB · WRIT - C No. 21791 of 2024 · **Writ petition disposed of; petitioner directed to apply under Clause 3, Works of Licensees Rules, 2006, with status quo pending decision**

HEADNOTE

Under Clause 4.5(d) of the U.P. Electricity Supply Code, 2005, a person over whose land an electricity supply line is being laid has a right to object to the laying of that line. Clause 3 of the Works of Licensees Rules, 2006 empowers the District Magistrate, Commissioner of Police, or other authorised officer to resolve such an objection, balancing the landowner's rights against the public interest in the work (e.g. rural electrification) not being unduly stalled.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

A landowner's objection to an electric pole/line erected on his private property to supply neighbouring residents is to be resolved by the District Magistrate/Commissioner of Police/authorised officer under Clause 3 of the Works of Licensees Rules, 2006, balancing his Clause 4.5(d) right against the public interest in the electrification work

QUESTION

How is a dispute to be resolved where a landowner objects to a new electric pole/line being erected on his private property to supply electricity connections to village residents, and the residents contend the public work should not be stalled?

HOLDING

The landowner has a right under Clause 4.5(d) of the Supply Code to object to a supply line being laid over his land; that objection is to be resolved under Clause 3 of the Works of Licensees Rules, 2006 by the District Magistrate, Commissioner of Police, or other authorised officer, who must balance the landowner's rights against the public interest in not unduly stalling the electrification work. The petitioner was directed to file an application under Clause 3 (with a supporting affidavit, documents, and photographs) within three weeks; the authority was directed to decide the application within eight weeks after hearing all necessary parties, with status quo to be maintained in the interim.

¶ unnumbered order

LIMITING FACTS

The petitioner objected to a new electric pole being erected on his private property and to an electric line being routed from a pole on his land to supply village residents, who in turn contended the petitioner was obstructing an urgently-needed public electrification work.

PRINCIPLE TAGS

clause-4.5d-landowner-objection-to-supply-line A landowner's Clause 4.5(d) right to object to a supply line over his land is vindicated through the Clause 3, Works of Licensees Rules 2006 resolution mechanism before the District Magistrate/Commissioner of Police, balancing private property rights against public electrification interests.

¶ unnumbered order

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE POLE/LINE PLACEMENT ON THE PETITIONER'S LAND SHOULD PROCEED OR BE RELOCATED

Not decided; left to the Clause 3, Works of Licensees Rules 2006 authority after hearing all parties. ¶ unnumbered order

Abhimanyu Singh v. State of U.P. & 7 Others

Allahabad High Court · Division Bench · 9 April 2026 · 2026 SCC OnLine All 5411 · Writ - C No. 10937 of 2026 · **Writ petition disposed of with directions on the fresh estimate and supply**

HEADNOTE

On the cost of extending a new connection under the U.P. Electricity Supply Code, 2005, direct transmission from the distribution main to the point of supply is at the licensee's cost; but where a third party's objection (here neighbours asserting the applicant's property is landlocked) requires the licensee to adopt an alternate/longer route, the cost differential is to be borne by the applicant (Clause 4.5(d)). Where the applicant first opted to do the work himself (attracting only supervision charges under Clause 4.6(e)) and then asked the licensee to give the supply, a revised estimate follows. The licensee was directed to furnish particulars of the cost of the direct route and of the longer route necessitated by the objection, demand only the differential, adjust any excess already deposited against future bills (or collect any shortfall), and give the supply within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

Alternate-route cost differential on a third-party objection is borne by the applicant

QUESTION

Who bears the extra cost when a third party's objection forces the licensee to route a new supply line along a longer/alternate route?

HOLDING

Direct transmission from the distribution main to the point of supply is at the licensee's cost. Under Clause 4.5(d), where the supply line would go over a third party's property and an objection requires an alternate route, the applicant must obtain the no-objection or bear the cost differential of the different route. The licensee must furnish particulars of the cost of the direct and the longer route, and demand only the differential; any excess already deposited is adjusted against future bills, and the supply given within two weeks. ¶ 2-5

LIMITING FACTS

Applicant initially opted to establish the connection himself (only supervision charges under Clause 4.6(e)(ii)), then sought supply from the licensee; neighbours objected that the property is landlocked.

PRINCIPLE TAGS

clause-4.5d-landowner-objection-to-supply-line When a third party objects to a supply line over its property, the applicant must obtain the no-objection or bear the cost differential of the alternate route; the direct-route cost is the licensee's. ¶ 3-4

Clause 4.6

Estimate & Installation for a New Connection

5 cases, chronological:

SCJ-258 Executive Engineer, Electricity Urban Distribution Division IInd v. Electricity Ombudsman, Lucknow & Ors. **2010**

SCJ-201 Smt. Madhu Rani Agrawal v. State of U.P. & 5 Others **2014**

SCJ-116 Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors. **2017**

SCJ-002 Suman Engineering and Chemicals Pvt. Ltd. v. U.P.P.C.L. & 4 Others **2023**

SCJ-169 Abhimanyu Singh v. State of U.P. & 7 Others **2026**

Executive Engineer, Electricity Urban Distribution Division IInd v. Electricity Ombudsman, Lucknow & Ors.

Allahabad High Court · Division Bench · 23 August 2010 · 2010 SCC OnLine All 2611 : (2010) 6 All LJ 446 · Civil Misc. Writ Petition No. 47592 of 2010 · **Writ petition dismissed; the Electricity Ombudsman's award (upholding the CGRF's directions) sustained**

HEADNOTE

Two holdings. (i) Under Clause 4.6(a) of the U.P. Electricity Supply Code, 2005 a sanctioned estimate is valid for three months and, the applicant having completed all formalities and deposited the estimate, the connection must be drawn/metered within the stipulated period; the department's own delay and a consequent re-demarcation of the area cannot justify shifting the consumer to a different (costlier) feeder or demanding a fresh estimate (proviso 4.6(g): estimates sanctioned before a revision of charges are not to be charged in excess). The Ombudsman rightly directed connection to the tube well on the old estimate from the urban feeder, billed under rate schedule LMV-5.3(b). (ii) The scope of interference with an Electricity Ombudsman's award is limited: the award has the flavour of an arbitral award and is challengeable only on grounds akin to Section 34 of the Arbitration and Conciliation Act, 1996 (jurisdictional error, breach of natural justice, violation of the Act/Code/Rules/rate schedule, fraud, or conflict with public policy) - reiterating *Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal*. No such ground being made out, the writ was dismissed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6

Departmental delay cannot shift the consumer to a costlier feeder or a fresh estimate; connection on the old estimate

QUESTION

Where the department delays energising a sanctioned, fully-paid connection and the area is later re-demarcated, can it require a fresh (higher) estimate and a different feeder?

HOLDING

No. The estimate is valid for three months (Clause 4.6(a)) and the connection ought to have been drawn and metered within the stipulated period after the applicant completed formalities and deposited the amount; the department's own delay and the consequential change of area cannot authorise it to change the feeder or demand a fresh estimate. Proviso 4.6(g) bars charging estimates in excess where they were sanctioned before a revision of charges. The Ombudsman rightly directed connection to the tube well on the old estimate from the urban feeder (no restriction in the Code against supplying a private tube well from an urban feeder), billed under rate schedule LMV-5.3(b). ¶ 9-11

LIMITING FACTS

Connection sanctioned and estimate (Rs. 48,575) deposited in 2007; department failed to draw the line for years; area re-demarcated; department offered a fresh estimate from a farther rural feeder.

INTERPLAY · EA2003::42

Limited scope of judicial interference with an Electricity Ombudsman's award

QUESTION

On what grounds may the High Court interfere with an award of the Electricity Ombudsman?

HOLDING

Only on limited grounds. The Ombudsman (appointed under s.42(6) and the Regulations) resolves grievances by conciliation/mediation or, failing that, by an award that has the flavour of an arbitral award; it is challengeable only on grounds akin to Section 34 of the Arbitration and Conciliation Act, 1996 - jurisdictional error, breach of natural justice, violation of an express provision of the Act/Code/Rules/rate schedule, fraud, or conflict with public policy - reiterating *Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal*. As none of these grounds was made out, the writ was dismissed.

¶ 12-16 (and reiteration at 13-15)

LIMITING FACTS

EE challenged the Ombudsman's award only on the merits of the feeder/estimate direction, raising no jurisdictional, natural-justice, fraud or public-policy ground.

PRINCIPLE TAGS

estimate-departmental-delay-cannot-shift-feeder-or-force-fresh-estimate A sanctioned, fully-paid estimate must be honoured; the department's delay cannot be used to move the consumer to a costlier feeder or demand a fresh estimate (Clause 4.6(a)/(g)).

¶ 9-11

ombudsman-award-challengeable-only-on-s34-arbitration-grounds An Electricity Ombudsman's award is akin to an arbitral award and may be interfered with only on grounds similar to s.34 of the Arbitration and Conciliation Act, 1996. Lead authorities: *Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal (Electricity Ombudsman)* [SCJ-260]. ¶ 12-15

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Purvanchal Vidyut Vitran Nigam Ltd. v. Vidyut Lokpal (Electricity Ombudsman)</i> 2008 (5) ALJ 683 : AIR 2008 All 127 [SCJ-260] Allahabad High Court (Division Bench)	An Electricity Ombudsman's award (where conciliation/mediation fails) is akin to an arbitral award and challengeable only on limited grounds similar to s.34 of the Arbitration and Conciliation Act, 1996; a settlement by conciliation is challengeable only for want of jurisdiction or fraud.	Reiterated and followed on the limited scope of interference with an Ombudsman's award. ¶ 12-15	Court	Followed
<i>Durga Hotel Complex v. Reserve Bank of India</i> (2007) 5 SCC 120 : AIR 2007 SC 1467 Supreme Court	On the nature and role of an Ombudsman and the scope of interference with its decisions.	Referred in explaining the office and function of the Electricity Ombudsman. ¶ 13	Court	Referred

SCJ-258 · Executive Engineer, Electricity Urban Distribution Division IInd v. Electricity Ombudsman, Lucknow & Ors. · 2010 SCC OnLine All 2611 : (2010) 6 All LJ 446 · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Smt. Madhu Rani Agrawal v. State of U.P. & 5 Others

Allahabad High Court · Division Bench · 7 January 2014 · 2014 SCC OnLine All 229 · Writ - C No. 526 of 2014 · **Writ petition dismissed**

HEADNOTE

A consumer cannot insist on supplying and installing the equipment (transformer, poles, etc.) for a new electricity connection herself. Under the regulations and the Cost Data Book, where installation is to be made up to 500 metres from the pole/connection the entire installation work is done by the Electricity Department itself (beyond that, charges are levied or the consumer may be allowed to install at her own expense). Clause 4.6 of the U.P. Electricity Supply Code, 2005 provides that the estimate for release of a new connection includes the charges of laying the line, distribution mains, material and system-loading charges — which covers the installation of poles and transformer. The Department is therefore obliged to carry out the installation and the consumer is obliged to pay for it; the plea to self-install (installation being within 500 metres) had no merit.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.6

Licensee performs the installation (within 500 m); consumer cannot self-supply equipment

QUESTION

Can a consumer insist on providing and installing the transformer/poles for a new connection instead of the Department?

HOLDING

No. Under the regulations and the Cost Data Book, installation up to 500 metres from the pole is done by the Department; and Clause 4.6 provides that the new-connection estimate includes the charges of laying the line, distribution mains, material and system-loading charges, which covers poles and transformer. The Department is obliged to carry out the installation and the consumer to pay for it; the plea to self-install (the installation being within 500 metres) fails. ¶ (order)

LIMITING FACTS

New connection with installation admittedly within 500 metres; consumer wished to supply a 'better quality' transformer and poles herself.

PRINCIPLE TAGS

licensee-performs-installation-consumer-cannot-self-supply Installation of new-connection infrastructure (within 500 m) is done by the licensee, whose estimate under Clause 4.6 includes laying-line/mains/material charges; the consumer pays but cannot insist on supplying/installing the equipment himself. ¶ (order)

Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors.

Allahabad High Court (Lucknow Bench) · Division Bench · 6 December 2017 · Service Bench No. 26771 of 2017 · **Writ petition allowed; suspension order quashed, reinstatement with full back wages directed**

HEADNOTE

Not primarily a Supply Code case — a service-law dispute over the suspension of a Development Authority Superintending Engineer pending disciplinary inquiry into alleged financial irregularities in a project to shift a 33 KV electric line (payment of supervision/centage charges and a construction contract). The Court quashed the suspension for want of application of mind under Rule 4, U.P. Government Servant (Discipline & Appeal) Rules, 1999, finding the petitioner had no substantive role in project approval, tendering, or contract award, and — incidentally — that the supervision-charge payment he processed was consistent with, not contrary to, Clause 4.6(e) of the U.P. Electricity Supply Code, 2005 (which the respondents conceded requires supervision charges to be paid to the licensee before commencement of work). Recorded here for corpus completeness given its incidental engagement with a Supply Code provision, but its substance is government-servant suspension jurisprudence, not the retail consumer billing/assessment/disconnection framework.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::government-servant-suspension-electric-line-project

Suspension of a Development Authority engineer for alleged financial irregularity in an electric-line-shifting project quashed for want of application of mind; Clause 4.6(e) of the Supply Code (supervision charges due before work commencement) was invoked only to show the petitioner's processing of such charges was procedurally correct, not to establish any independent Supply Code holding

HOLDING

The suspension order was quashed as passed without application of mind to Rule 4's requirement that suspension be resorted to only where allegations, if established, would warrant a major penalty; the record showed the petitioner had no substantive role in project conception, tender approval, or contract award, and had merely forwarded files in the ordinary course. On the specific supervision-charges allegation, the respondents conceded that Clause 4.6(e) of the Electricity Supply Code, 2005 requires such charges to be deposited with the licensee before commencement of work — meaning the charge that the petitioner had improperly processed centage payment 'prior to commencement of work' was, on the correct reading of Clause 4.6(e), based on a mistaken premise. ¶ paras 29, 43

FLAG Recorded for completeness of the source corpus; the operative holding is a service-law suspension ruling, with Clause 4.6(e) of the Supply Code invoked only incidentally as a factual defense regarding timing of a supervision-charge payment — not itself a substantive Supply Code determination relevant to this project's consumer-facing focus.

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>State of Orissa v. Bimal Kumar Mohanty</i> AIR 1994 SC 2296 [399238] Supreme Court	Suspension should not be passed as an administrative routine or mechanically; it requires consideration of the gravity of alleged misconduct and the evidence, applying the disciplinary authority's mind.	Applied as the governing standard to quash the suspension order.	Court	Followed
<i>The Management of Hotel Imperial, New Delhi v. Hotel Workers' Union</i> AIR 1959 SC 1342 [1202878] Supreme Court	The power to suspend is a creature of statute or contract, to be exercised keeping in view the letter and spirit of the statute.	Cited (via Dharendra Kumar Rai) for the statutory basis of suspension power.	Court	Followed

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Dhirendra Kumar Rai v. State of U.P.</i> 2010 (28) LCD 1248 Allahabad High Court (DB)	Surveys precedent on suspension power under Rule 4, U.P. Government Servant (Discipline & Appeal) Rules, 1999, holding suspension warranted only for allegations serious enough to attract major penalty if established.	Followed as the controlling survey of the applicable suspension standard.	Court	Followed

SCJ-116 · Shabih Haider v. State of U.P. thru. Prin. Secy., Housing & Urban Planning & Ors. · · Supply Code Jurisprudence

A jurisprudence extract prepared from the text of the judgment; not a substitute for the judgment, and to be verified against the original before use.

Suman Engineering and Chemicals Pvt. Ltd. v. U.P.P.C.L. & 4 Others

Allahabad High Court · Division Bench · 21 November 2023 · 2023:AHC:219951-DB · WRIT - C No. 6072 of 2016 · **Writ petition allowed in part**

HEADNOTE

System-loading charges recovered as part of a connection estimate under the U.P. Electricity Supply Code, 2005 are a normative exaction towards extension and upgradation of the distribution system, and fall due only on a person who enjoys the benefit of that system by actually taking supply. Where a sanctioned load is cancelled before any electricity is supplied — here for want of a pollution NOC, for which the applicant was not responsible — the applicant remains a mere prospective consumer and cannot be saddled with system-loading charges; they are refundable with interest. Clause 4.21(a)'s bar on refund “for reduction of load” applies only to a continuing beneficiary of the system, not to one who never took supply. Charges for a service line or electric plant, by contrast, may be retained under Section 46 of the Electricity Act, 2003 to the extent the licensee proves actual expenditure reasonably incurred; extension of distribution mains and new sub-stations, being the licensee's own statutory obligation under the first proviso to Section 43(1), cannot be loaded onto the consumer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.21(a)

System-loading charges — refundability where the connection is cancelled and never energised

QUESTION

Are system-loading charges — a normative charge for extension/upgradation of the distribution system, taken as part of the connection estimate — refundable where the sanction is cancelled and the applicant never becomes an actual consumer or draws supply, given that Clause 4.21(a) bars refund “for reduction of load”?

HOLDING

Yes, refundable. A system-loading charge is a compulsory exaction on one who enjoys the benefit of the distribution system; the liability accrues only once the applicant starts consuming electricity using the licensee's system. A prospective consumer who never takes supply cannot be fastened with it. Refund of Rs. 32,00,000 with interest @ 8.5% p.a. from the date of deposit ordered. ¶ 35-38, 40

LIMITING FACTS

The sanction for 3200 KVA was cancelled on 22.11.2014 because the U.P. Pollution Control Board never issued the NOC, for which the petitioner was not responsible; no electricity was ever supplied. Unlike a service line (Clause 4.29), the system upgradation remains the licensee's property and control even after disconnection.

QUALIFIER

Clause 4.21(a)'s bar on refund “for reduction of load” is confined to a consumer who continues to benefit from the system; it does not reach a prospective consumer who never took supply.

INTERPLAY · EA2003::46

Recoverable expenditure — actual expenses proved vs the licensee's own statutory obligation

HOLDING

Under Section 46 a licensee may recover only “expenses reasonably incurred in providing any electric line or electrical plant”, and the burden to prove actual expenditure lies on the licensee (as the Supreme Court's remand directed). Extension of distribution mains and commissioning of new sub-stations is the licensee's own statutory obligation under the first proviso to Section 43(1) and cannot be loaded onto the consumer. On the evidence the 4-pole structure and service line were actually constructed, so Rs. 5,49,181 and Rs. 4,65,000 were rightly retained; the processing fee of Rs. 5,000 is non-refundable per the Cost Data Book. ¶ 13-16, 25-26, 32

FLAG The Supreme Court's remand order dated 29.11.2022 (in this very case) fixed the frame: refund is to be denied only “to the extent” the respondents prove “the actual expenses incurred.”

charge-follows-actual-use Liability for system-upgradation (the system-loading charge) accrues only on actual consumption; a prospective consumer who never draws supply bears no share of it. ¶ 38, 40

licensee-bears-burden-of-proving-retained-charges Deposits taken as part of the estimate are refundable unless the licensee proves the actual expenditure reasonably incurred; unproved heads must be refunded. ¶ 16, 26, 32

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — NORMATIVE VS ACTUAL COST; APTEL & OMBUDSMAN ORDERS

The petitioner's broader submissions distinguishing recoverable actual cost from normative cost, and the various Appellate Tribunal / Ombudsman orders relied on, were not separately adjudicated; the decision rested narrowly on the prospective-consumer ground.

¶ 10

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>Central GST Delhi-III v. Delhi International Airport Ltd.</i> [33926990] Supreme Court	User Development Fee (UDF) is in the nature of a tax or cess collected to fund future projects, not consideration for a service, and is therefore not exigible to service tax.	Cited by the respondents to characterise system-loading charges as a non-refundable exaction; distinguished — that case concerned only the leviability of service tax on UDF, collected from persons actually liable, and “is of no help to the respondents.” ¶ 9, 39	Respondent	Distinguished

Abhimanyu Singh v. State of U.P. & 7 Others

Allahabad High Court · Division Bench · 9 April 2026 · 2026 SCC OnLine All 5411 · Writ - C No. 10937 of 2026 · **Writ petition disposed of with directions on the fresh estimate and supply**

HEADNOTE

On the cost of extending a new connection under the U.P. Electricity Supply Code, 2005, direct transmission from the distribution main to the point of supply is at the licensee's cost; but where a third party's objection (here neighbours asserting the applicant's property is landlocked) requires the licensee to adopt an alternate/longer route, the cost differential is to be borne by the applicant (Clause 4.5(d)). Where the applicant first opted to do the work himself (attracting only supervision charges under Clause 4.6(e)) and then asked the licensee to give the supply, a revised estimate follows. The licensee was directed to furnish particulars of the cost of the direct route and of the longer route necessitated by the objection, demand only the differential, adjust any excess already deposited against future bills (or collect any shortfall), and give the supply within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.5(d)

Alternate-route cost differential on a third-party objection is borne by the applicant

QUESTION

Who bears the extra cost when a third party's objection forces the licensee to route a new supply line along a longer/alternate route?

HOLDING

Direct transmission from the distribution main to the point of supply is at the licensee's cost. Under Clause 4.5(d), where the supply line would go over a third party's property and an objection requires an alternate route, the applicant must obtain the no-objection or bear the cost differential of the different route. The licensee must furnish particulars of the cost of the direct and the longer route, and demand only the differential; any excess already deposited is adjusted against future bills, and the supply given within two weeks. ¶ 2-5

LIMITING FACTS

Applicant initially opted to establish the connection himself (only supervision charges under Clause 4.6(e)(ii)), then sought supply from the licensee; neighbours objected that the property is landlocked.

PRINCIPLE TAGS

clause-4.5d-landowner-objection-to-supply-line When a third party objects to a supply line over its property, the applicant must obtain the no-objection or bear the cost differential of the alternate route; the direct-route cost is the licensee's. ¶ 3-4

Clause 4.8

New connection needing extension of mains / change of site

1 case, chronological:

SCJ-230 KPB Metals Private Limited v. State of U.P. and Others **2022**

KPB Metals Private Limited v. State of U.P. and Others

Allahabad High Court · Division Bench · 2 November 2022 · 2022 SCC OnLine All 940 · Writ - C No. 13176 of 2022 · **Writ petition dismissed**

HEADNOTE

Extending an existing sanctioned-load connection to newly-acquired adjoining plots is a 'change in site of the sanctioned load', barred by Clause 4.8(d)(i) of the U.P. Electricity Supply Code, 2005, and is not an internal 'change in wiring/apparatus/service line' within the same premises under Clause 4.45(c). Read with the definition of 'premises' in Clause 2.2(ss) - the area for which the connection has been applied for or sanctioned for a single consumer - the premises here was the single khasra (267M) for which the connection was sanctioned; the plots (265, 266) acquired later, after the sanction, did not become part of those premises merely by being contiguous. The Executive Engineer was justified in invoking Clause 4.8(d) to reject the request; the consumer's remedy is to apply for a fresh connection for the new premises or to seek disconnection and a fresh connection for the entire premises. Petition dismissed.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.8

Extending a sanctioned connection to newly-acquired adjoining plots is a barred change of site, not an internal change within the premises

QUESTION

Can a consumer use an existing sanctioned-load connection for adjoining plots acquired after the sanction, as an internal change under Clause 4.45(c), or is that a change of site barred by Clause 4.8(d)(i)?

HOLDING

It is a change in the site of the sanctioned load, which Clause 4.8(d)(i) does not permit. Clause 4.45(c) applies only to changes in wiring/apparatus/service line within the premises for which the connection was accorded; 'premises' under Clause 2.2(ss) is the area (here khasra 267M) for which the connection was applied for/sanctioned for a single consumer. Plots 265 and 266, acquired after the sanction, did not become part of those premises merely by being contiguous, so Clause 4.45(c) was inapplicable and the Executive Engineer rightly invoked Clause 4.8(d) to reject the request. The consumer may apply afresh for the new premises, or seek disconnection and a fresh connection for the entire premises.

¶ 3-15

LIMITING FACTS

3000 KVA load sanctioned for khasra 267M; adjoining plots 265/266 acquired 25.1.2022, after the sanction; application to use the existing connection for the additional plots rejected under Clause 4.8(d).

PRINCIPLE TAGS

premises-is-area-for-which-connection-sanctioned-clause-2.2(ss) 'Premises' is the specific area/khasra for which a single consumer's connection was applied for or sanctioned; later-acquired contiguous plots are not part of it merely by adjacency.

¶ 9-13

change-of-site-of-sanctioned-load-not-permitted-4.8(d) Extending a sanctioned connection to a different/enlarged site is a change of site barred by Clause 4.8(d)(i), not an internal change under Clause 4.45(c); a fresh connection must be sought.

¶ 7-14